JUDGMENT SHEET.

ISLAMABAD HIGH COURT, ISLAMABAD, JUDICIAL DEPARTMENT.

Writ Petition No.895 of 2016

Asad Afzal Humayun

Versus

Pakistan Telecommunication Company Limited and others

Petitioner by:	Mr. Khalil ur Rehman Abbasi, Advocate.
Respondents by:	Mr. Ali Nawaz Kharal, Advocate along with Raheel Zafar, GD-Legal and Nauman Ahmad Manager Legal, PTCL.
Date of Decision:	**09.05.2025.**

INAAM AMEEN MINHAS, J.- Through this writ petition, the petitioner has prayed for following relief:-

> *"It is, therefore, most humbly prayed that an appropriate Writ may kindly be issued against the respondents directing them to pay and reimburse the pension, medical etc., to the petitioner and the respondents letter dated 24.03.2014 and previous office noting dated 16.02.2008 may kindly be set aside and the petitioner pension be paid immediately.*
>
> *It is therefore most humbly prayed that during the pendency of the above titled Writ Petition the respondents may kindly be directed to pay the pension to the petitioner till the final decision of the above mentioned writ petition in the best interest of justice."*

2. Brief facts of the case are that the petitioner joined the service in BPS-17 of Pakistan Council of Appropriate Technology (PCAT), Ministry of Science and Technology, Government of Pakistan, Islamabad w.e.f 27.12.1982. On 02.12.1998 the petitioner joined PTCL

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on deputation basis. The petitioner was absorbed in PTCL on 30.12.2002. Later on the petitioner submitted an application for counting of service towards pension in terms of clause-III of the letter of absorption in PTCL, upon which the Director Commercial Accounts, PTCL, Lahore calculated pension contribution amounting to Rs.182,020/-. Service rendered by the petitioner in the office of PCAT was in a regular post, pensionable and the case of the petitioner was complete in all aspect for the inclusion in calculation of his previous service towards pension w.e.f 27.12.1982 to 01.12.1998, service at PCAT and the deputation period w.e.f 02.12.1998 to 29.12.2002 in PTCL. The case was duly recommended by the department but SEVP (Finance) raised frivolous objection and did not recommend the case for approval. Subsequently, the case was referred to the Senior Manager Legal, who also recommended for review of the decision of SEVP (Finance). Consequently, the petitioner's case was further referred by respondent No.2 to the Director General, Pakistan Council of Renewable Energy Technologies vide letter dated 24.03.2014 for payment of proportionate share of the pension charges Rs.3,769,271/-, which letter is patently illegal, void and only to linger on the petitioner's case and the objection raised by SEVP (Finance) dated 16.02.2008 is also illegal, void and without any reasoning, hence, this petition.

3. The learned counsel for the petitioner contended that it is the statutory duty and obligation of the respondents/PTCL to pay the pensionary benefits to the petitioner and that it is settled principle of

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law that pay and pension are the continuous cause of action in which no period of limitation shall be applicable.

4. Conversely, the learned counsel for the respondents resisted the instant petition and contended that the petitioner at the time of his retirement received all admissible benefits/dues as per the applicable rules/regulations under the VSS-2014 as such this is past and closed transaction; that the petitioner had accepted the VSS-2014 with the terms and conditions of the scheme and he was never coerced or compelled to accept the VSS-2014 and that the petitioner has no claim against the respondents, therefore, this writ petition may be dismissed.

5. I have heard the arguments and perused the record.

6. Perusal of the record shows that the petitioner was initially employed by PCAT in the year 1982, which operated under the Ministry of Science and Technology. In the year 1998 the petitioner joined the respondents company as a deputationist and in the year 2002 the petitioner was absorbed in the respondents company. On 04.02.2014 the respondents company extended an offer to the petitioner under the VSS, 2014 a policy designed to allow the employees to voluntarily retire in exchange for certain financial benefits. On 21.02.2014, the petitioner accepted this offer and by the terms and conditions of the VSS-2014 policy received all the retirement benefits and financial dues that were admissible under the scheme. However, despite voluntarily separating and accepting the offered benefits, the petitioner filed the present writ petition seeking a direction from this Court to direct the respondents company to grant him pension for the period, which he

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served in PCAT and the deputation period served in the respondents company. Furthermore the petitioner has prayed for setting aside the respondents' company letter dated 24.03.2014 and an internal noting dated 16.02.2008. This raises legal question whether an employee, who voluntarily opted for and fully benefited from a separation scheme can later seek further entitlements that were not included in the mutually agreed terms of the VSS-2014.

7. Record further reveals that the petitioner while availing the VSS-2014 not only accepted all dues payable under the scheme, including pension related benefits but also completed the necessary formalities to give legal effect to his decision. These formalities included signing an official undertaking on 21.02.2014 confirming his intention to opt for the VSS-2014 and submitting an affidavit verifying end of his service connection on 26.02.2014 along with other relevant documentation. These acts demonstrate that the petitioner knowingly and willingly accepted the scheme and all its associated terms. Once an employee accepts such a separation scheme and receives the full financial entitlements, effectively settling all service-related claims, he becomes legally bound by the terms and conditions of that scheme. However, in the present case after a considerable delay of approximately after two years of availing VSS-2014, the petitioner approached this Court, therefore, the petitioner's claims appears to be an afterthought, lacking legal merit given the settled legal principle that one who voluntarily accepts the benefits of a contractual scheme cannot later resile from its terms.

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8. The learned counsel for the petitioner when confronted with all the above mentioned facts, particularly the petitioner's voluntary acceptance of the VSS-2014 scheme, execution of related documents and receipt of all admissible dues, he submitted that he was unaware of these material details and could not rebut the same.

9. Moreover, the petitioner has failed to produce any evidence to contradict or challenged the respondents company's position. In legal proceedings especially while invoking Constitutional jurisdiction, it is essential that a petitioner approaches the Court with complete transparency and supports his claims with credible evidence.

10. In view of the above discussion, the instant writ petition bears no merits, therefore, the same is hereby **dismissed.**

(INAAM AMEEN MINHAS)
JUDGE

R.Anjam,

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